

STATE OF NEW YORK
SUPREME COURT COUNTY OF KINGS

PERCY GRAVENHISE,

Plaintiff,

-against -

THE CITY OF NEW YORK, POLICE OFFICER
DANIEL J. McGEE and SGT. TAHA A. JAHMI
in their individual and official capacities as Police
Officers employed by the City of New York,

Defendants.

SUMMONS

Index No.:

Date Filed:

*Plaintiff designates Kings
County as the Place of Trial
The Basis of Venue is the
Defendant's residence.*

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Complaint in this action and to serve a copy of your Answer, or of the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's Attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty [30] days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

DATED: November 25, 2024
Flushing, New York

Yours, etc.,



ANDREW F. PLASSE ATTORNEY AT LAW
Attorney for the Plaintiff
Office and P.O. Address
163-07 Depot Road, Suite 105
Flushing, NY 11358
(212) 695-5811

DEFENDANTS' ADDRESS:

The City of New York
1 Centre Street
New York, NY 10007

Police Officer Daniel J. McGee
Sgt. Taha A. Jahmi
69th Precinct
9720 Foster Ave., Brooklyn, NY 11236

STATE OF NEW YORK
SUPREME COURT COUNTY OF KINGS

PERCY GRAVENHISE,

COMPLAINT

Index No.:

Plaintiff,

-against -

**THE CITY OF NEW YORK, POLICE OFFICER
DANIEL J. McGEE and SGT. TAHA A. JAHMI
in their individual and official capacities as Police
Officers employed by the City of New York,**

Defendants.

Plaintiff, by his attorney, ANDREW F. PLASSE Attorney at Law, as and for his

Complaint, hereby alleges and shows to the Court the following, all upon information and belief:

1. At all times hereinafter mentioned, the Plaintiff Percy Gravenhise is an individual and resides at 276 Stanley Ave., Brooklyn, NY 11207.
2. Upon information and belief, and at all times hereinafter mentioned, defendant City of New York, was and now is, a municipal corporation, existing under and incorporated under the laws of the State of New York, with its principal place of business located at the Municipal Building, One Centre Street, New York, NY 10007.
3. Upon information and belief, defendants Police Officer Daniel J. McGee and Sgt. Taha A. Jahmi, are individuals residing in the State of New York and employed with the New York City Police Department.
4. That heretofore the Plaintiff caused a Notice of Claim, in writing, sworn to by and on behalf of the Plaintiff, to be duly served upon the defendant City of New York by delivering a copy thereof to the Office of the Comptroller of the City of New York, which said Notice of Claim set forth the name and post office address of the said Plaintiff, the nature of the claim, the

time when, the place where and the manner in which said claim arose and the items of damages or injuries claimed to have been sustained so far as then practicable; that at least ninety [90] days have elapsed since the service of said Notice of Claim and payment thereof has been refused; and that this action is being commenced within one year and ninety days after the occurrence of the event upon which this claim is based.

5. That upon information and belief, the City of New York owned, operated, controlled and maintained the New York City Police Department by charter, or by law, under the provisions of the State and/or City of New York.

6. Plaintiff hereby brings this action against the City of New York, Police Officer Daniel J. McGee and Sgt. Taha A. Jahmi in their individual and official capacities as Police Officers employed by the City of New York for damages arising out of unconstitutional policies and actions arising out of an alleged false arrest, false imprisonment and malicious prosecution as the result of an alleged incident which occurred on August 7, 2024

7. Plaintiff brings this action against the individual defendants to redress the deprivation of rights secured to him by the Fourth, Fifth, and Fourteenth Amendments of the United States Constitution, the parallel rights of the New York State Constitution, and 42 U.S.C Section 1983.

8. At all times hereinafter mentioned, Defendants Police Officer Daniel J. McGee, Sgt. Taha A. Jahmi acted under color of state law or a statute, ordinance, regulation or custom.

STATEMENT OF FACTS

9. Plaintiff was at home at 276 Stanley Ave., Brooklyn, NY at 6:00 a.m. on August 7, 2024.

10. New York City Police Officers, including but not limited to Police Officer Daniel McGee and Sgt. Taha Jahmi, entered his premises stating they had a search warrant to enter.

11. Upon entering the premises, the defendants handcuffed the plaintiff.
12. Plaintiff was placed under arrest inside his home.
13. Defendants had no probable cause to arrest the plaintiff.
14. Plaintiff was forcibly removed from his home to the 69th Precinct from his home in handcuffs.
15. Plaintiff requested that he be able to take his daily medication, but the request was denied.
16. Plaintiff was taken to the 69th Precinct at 9720 Foster Ave., Brooklyn, NY 11236 against his will and placed in a cell.
17. Plaintiff remained under arrest in a cell for hours.
18. Upon his return home, plaintiff found that his entrance door was destroyed, the entire house had been ransacked, his medication was missing, he had approximately \$3,300.00 in cash missing.

PLAINTIFF'S CLAIM

19. Upon information and belief, Police Officers Daniel J. McGee and Sgt. Taha A. Jahmi acted with actual malice toward the plaintiff and with willful and wanton indifference and deliberate disregard for the statutory and constitutional rights of the plaintiff.
20. Upon information and belief, the actions taken as aforesaid by Police Officers Daniel J. McGee, Sgt. Taha A. Jahmi , constituted false arrest, false imprisonment, malicious prosecution, conversion, and deprivation of liberty without due process of law.
21. Upon information and belief, the conduct of defendants Police Officers Daniel J. McGee, Sgt. Taha A. Jahmi violated the Fourth, Fifth, and Fourteenth Amendments of the United States Constitution.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST
DEFENDANT CITY OF NEW YORK, PLAINTIFF RESTATES
AND REALLEGES EACH AND EVERY ALLEGATION SET
FORTH IN PARAGRAPHS MARKED AND ENUMERATED
“1-21” AND FURTHER ALLEGES AS FOLLOWS:**

22. That the employees of the defendant as aforesaid jointly and severally falsely imprisoned the plaintiff causing him to sustain severe personal injuries.

23. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANT CITY
OF NEW YORK, PLAINTIFF RESTATES AND REALLEGES EACH AND EVERY
ALLEGATION SET FORTH IN PARAGRAPHS MARKED AND
ENUMERATED “1-21” AND FURTHER ALLEGES AS FOLLOWS:**

24. That the employees of the defendant as aforesaid jointly and severally falsely arrested the plaintiff causing him to sustain severe personal injuries.

25. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANT CITY OF
NEW YORK, PLAINTIFF RESTATES AND REALLEGES EACH AND EVERY
ALLEGATION SET FORTH IN PARAGRAPHS MARKED AND
ENUMERATED “1-21” AND FURTHER ALLEGES AS FOLLOWS:**

26. That the employees of the defendant as aforesaid jointly and severally maliciously prosecuted the plaintiff causing him to sustain severe personal injuries.

27. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANT CITY OF
NEW YORK, PLAINTIFF RESTATES AND REALLEGES EACH AND EVERY
ALLEGATION SET FORTH IN PARAGRAPHS MARKED AND
ENUMERATED “1-21” AND FURTHER ALLEGES AS FOLLOWS:**

28. That the employees of the defendant as aforesaid jointly and severally maliciously damaged the plaintiff's personal property and stole his cash causing him to sustain property damages.

29. That by reason of the foregoing damage of personal property and conversion, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FIRST CAUSE OF ACTION PURSUANT TO 42 USC 1983, AGAINST DEFENDANTS POLICE OFFICERS DANIEL J. MCGEE and SGT. TAHA A. JAHMI, , JOINTLY AND SEVERALLY, PLAINTIFF RESTATES AND REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN PARAGRAPHS MARKED AND ENUMERATED "1-21" AND FURTHER ALLEGES AS FOLLOWS:

30. Upon information and belief, the actions taken as aforesaid by Police Officers Daniel J. McGee, Sgt. Taha A. Jahmi constituted false arrest, malicious prosecution, and false imprisonment, in violation of the Fourth Amendment and a deprivation of liberty without due process of law under the Fifth and Fourteenth Amendments.

31. Upon information and belief, Police Officers Daniel J. McGee and Sgt. Taha A. Jahmi acted with actual malice toward the Plaintiff and with willful and wanton indifference and deliberate disregard for the statutory and constitutional rights of the plaintiff.

32. Solely by reason of the above, the plaintiff sustained severe personal injuries, was rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has been and continues to be

unable to pursue the usual duties with the same degree of efficiency as prior to this accident, all to plaintiff's great damage.

33. That by virtue of the foregoing, Plaintiffs have been damaged in the amount of TEN MILLION [\$10,000,000.00] DOLLARS.

WHEREFORE, Plaintiff demands Judgment as follows:

I. Judgment on the First Cause of Action on behalf of the Plaintiff Percy Gravenhise against the City of New York in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

II. Judgment on the Second Cause of Action on behalf of the Plaintiff Percy Gravenhise against the City of New York in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

III. Judgment on the Third Cause of Action on behalf of the Plaintiff Percy Gravenhise against the City of New York in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

IV. Judgment on the Fourth Cause of Action on behalf of the Plaintiff Percy Gravenhise against the City of New York in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

V. Judgment on the First Cause of Action on behalf of the Plaintiff Percy Gravenhise against Defendants Police Officers Daniel J. McGee and Sgt. Taha A. Jahmi in the amount of TEN MILLION (\$10,000.00) DOLLARS;

VI. Judgment for Punitive Damages against defendants Police Officers Daniel J. McGee and Sgt. Taha A. Jahmi in the amount of TEN MILLION (\$10,000.00) DOLLARS;

VII. Together with the costs and disbursements of this action, reasonable attorney fees under the Federal Statutes and for such other and further relief as to this Court seems just and proper.

DATED: November 25, 2024
Flushing, New York

Yours, etc.,



ANDREW F. PLASSE ATTORNEY AT LAW
Attorney for the Plaintiff
Office and P.O. Address
163-07 Depot Road, Suite 105
Flushing, NY 11358
(212) 695-5811

VERIFICATION

STATE OF NEW YORK)
COUNTY OF QUEENS) ss.:

I, the undersigned, an attorney duly admitted to practice law in the State of New York, state that I am attorney of record for Percy Gravenhise, the plaintiff in the within action; I have read the foregoing COMPLAINT and I know the contents thereof; the same is true as to my own knowledge, except as to those matters stated to be alleged upon information and belief, and as to those matters, I believe it to be true; the reason why this verification is made by me and not by Percy Gravenhise, is because he resides outside of the County of Queens, and is outside the principal location of my office which is located in Queens County.

The grounds of my belief as to those matters not stated upon my own knowledge are as follows: Review of his file maintained by my office in the ordinary course of business.

DATED: November 25, 2024
Flushing, New York



ANDREW F. PLASSE